

HOUSE No. 1830

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Lawn, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to governmental and charitable tort liability.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 1830

By Representative Lawn of Watertown, a petition (accompanied by bill, House, No. 1830) of John J. Lawn, Jr., for legislation relative to governmental and charitable tort liability. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 916 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to governmental and charitable tort liability.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 85K of chapter 231 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting, after the words “shall not exceed the sum of
3 \$100,000, exclusive of interests and costs” the following:- “provided, however, that all claims of
4 sexual abuse of a minor, as defined in section 4C of chapter 260, shall not be subject to a
5 limitation on damages”

6 SECTION 2. Section 2 of chapter 258 of the General Laws, as appearing in the 2020
7 Official Edition, is hereby amended by inserting after the words “the Massachusetts Bay
8 Transportation Authority shall not be subject to a \$100,000 limitation on compensatory
9 damages” the following:- “; provided further that all claims of sexual abuse of a minor, as
10 defined in section 4C of chapter 260, shall not be subject to a \$100,000 limitation on damages”

11 SECTION 3. Subsection (j) of section 10 of said chapter 258 is hereby amended by
12 inserting, after paragraph (4), the following paragraph:- “(5) any claim of sexual abuse of a
13 minor, as defined in section 4C of chapter 260, by a public employee or contractor.”